



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 2, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201807668 regarding Sergeant Anthony Donato, Tax No. [REDACTED] (DADS No. 2019-21010)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts, circumstances, and body-worn camera footage in this case, and agrees with the Civilian Complaint Review Board's findings that Sergeant Donato did not act reasonably under the circumstances when he was discourteous and used offensive language towards an individual. Specifically, Sergeant Donato's statement was made after the individual was already under control and restrained and therefore served no legitimate law enforcement purpose.

However, the Police Commissioner disagrees with the proposed Civilian Complaint Review Board penalty as it does not rise to the level of a Schedule "B" Command Discipline. Instead, the Police Commissioner directs that Sergeant Donato receive a Schedule "A" Command Discipline for the allegations substantiated by the Civilian Complaint Review Board.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office

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